

Court No. - 29

Case :- WRIT - C No. - 29677 of 2019

Petitioner :- Vakeel Khan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajendra Singh Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi for respondents no. 2 and 3.

Under challenge in this petition is the recovery citation dated 19.8.2019 whereby a sum of Rs. 3,87,252/- are sought to be realized from the petitioner as electricity dues.

The petitioner submits that he has not used electricity unauthorizely and that the recovery is illegal.

Sri Baleshwar Chaturvedi has placed before us the checking report dated 3.11.2018 wherein it has been stated that the petitioner at the time of checking was found using electricity unauhtorizely. Accordingly, provisional assessment for the unauthorized use of electricity was done and the same was finalized vide order dated 15.2.2019.

The aforesaid recovery is in pursuance to the aforesaid final assessment and therefore the petitioner can not succeed unless he challenges the final assessment.

The final assessment can be challenged by the petitioner by filing an appeal under Section 127 of the Act.

At this stage learned counsel for the petitioner submits that he may be permitted to deposit the aforesaid amount in installments.

In case petitioner wants to deposit the aforesaid amount in installments, he may approach the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, the writ petition stands disposed of.

Order Date :- 23.9.2019

SKS